

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
JESUS E. SANTOS,

Plaintiff,

- against -

THE CITY OF NEW YORK, MARCY VELEZ,
JAMES SHAUGHNESSY and EURIS PAULINO,

Defendants
-----X

10CV9486(RJH)

AMENDED COMPLAINT AND
DEMAND FOR JURY TRIAL

ECF CASE

Plaintiff, by his attorney, Eugene M. Bellin, complaining of the defendants, alleges:

NATURE OF THE ACTION

1. This is a civil rights action to redress the defendants' violation of the rights accorded to plaintiff Jesus E. Santos by the Civil Rights Act of 1871, 42 U.S.C. §1983, by the Constitution of the United States, including the Fourth, Fifth and Fourteenth Amendments, and by the laws of the State of New York.

2. Jesus E. Santos is a citizen of the United States who was lawfully present in Morningside Park in the Borough of Manhattan, City and State of New York, on February 4, 2010, when he was seized, forcibly handcuffed and arrested by the defendants on a false criminal charge of Criminal Possession of a Controlled Substance in the 7th Degree, held in custody until February 5, 2010, and prosecuted on a false criminal charge of Criminal Possession of a Controlled Substance in the 7th Degree. The false charge against plaintiff Jesus E. Santos was dismissed on July 26, 2010. The defendants' actions were unlawful, and the plaintiff brings this action seeking compensatory and punitive damages.

JURISDICTION AND VENUE

3. Jurisdiction of this Court is invoked pursuant to the Constitution of the United States, 28 U.S.C. §§1331, 1343(3) and (4), 42 U.S.C. §§1983 and 1988, in that this is an action seeking to redress the violation of the plaintiff's constitutional and civil rights, and 28 U.S.C. §1367(a), in that the state and federal claims arise from a common nucleus of operative facts such that they are so related that they form part of the same case or controversy under Article III of the United States Constitution.

4. Venue is proper in this Court pursuant to 28 U.S.C. §1391(b) and (c) in that the all of the events which give rise to the claim occurred within the jurisdiction of the United States District Court for the Southern District of New York, defendants Marcy Velez, James Shaughnessy and Euris Paulino can be found within the Southern District of New York, and defendant The City of New York is a municipal corporation located in the Southern District of New York which is subject to personal jurisdiction in the Southern District of New York.

PARTIES

5. Plaintiff Jesus E. Santos is a citizen of the United States who resides in the County of New York, City and State of New York.

6. Defendant The City of New York is, and at all times relevant herein was, a municipal corporation created under the laws of the State of New York.

7. At all times relevant herein, defendant The City of New York maintained a police department.

8. Defendant Marcy Velez is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

9. At all times relevant herein, defendant Marcy Velez was acting within the scope of her employment by defendant The City of New York.

10. Defendant James Shaughnessy is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

11. At all times relevant herein, defendant James Shaughnessy was acting within the scope of his employment by defendant The City of New York.

12. Defendant Euris Paulino is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

13. At all times relevant herein, defendant Euris Paulino was acting within the scope of his employment by defendant The City of New York.

NOTICE OF CLAIM

14. On August 26, 2010, and within ninety days of the accrual of the cause of action for malicious prosecution, plaintiff Jesus E. Santos served on the Comptroller of the City of New York a Notice of Claim setting forth the time when, the place where and the manner in which his claims arose.

15. Plaintiff Jesus E. Santos' motion to extend his time to file a Notice of Claim as to his causes of action for assault and battery and false imprisonment and to deem his Notice of Claim served on August 26, 2010 to have been time served *nunc pro tunc* was granted by an Order of New York Supreme Court Justice O. Peter Sherwood dated November 17 2010.

16. More than thirty days have elapsed since the plaintiff's Notice of Claim was served upon defendant The City of New York and said defendant has neglected and/or refused to make an adjustment or payment.

STATEMENT OF CLAIMS

17. Plaintiff incorporates by reference paragraphs 1 through 16 of this complaint as though the same were set forth fully herein.

18. On February 4, 2010, at approximately 9:30 p.m., plaintiff Jesus E. Santos was lawfully present in Morningside Park in the Borough of Manhattan, City and State of New York.

19. On February 4, 2010, at approximately 9:30 p.m., in Morningside Park, in the Borough of Manhattan, City and State of New York, defendants James Shaughnessy and Euris Paulino seized plaintiff Jesus E. Santos, grabbed his arm and handcuffed his hands behind his back.

20. Defendants Marcy Velez and James Shaughnessy and Euris Paulino thereupon arrested plaintiff Jesus E. Santos on charges of Criminal Possession of a Controlled Substance in the Seventh Degree.

21. Plaintiff Jesus E. Santos was not in possession of any controlled substance.

22. The defendants did not have any warrant or other legal process directing or authorizing the seizure, arrest, detention, or imprisonment of plaintiff Jesus E. Santos.

23. The defendants transported plaintiff Jesus E. Santos to the 26th Precinct at 520 W. 126th Street, New York, New York, where the plaintiff was imprisoned for several hours.

24. The defendants then caused plaintiff Jesus E. Santos to be transported to Manhattan Central Booking, where he was imprisoned until the following day.

25. On information and belief, on February 5, 2010, defendant Marcy Velez falsely informed an Assistant District Attorney in the office of the New York County District Attorney that plaintiff Jesus E. Santos had been in possession of a controlled substance, to wit, PCP.

26. On February 5, 2010, defendant Marcy Velez instituted a criminal proceeding against plaintiff Jesus E. Santos in the Criminal Court of the City of New York, County of New York,

accusing the plaintiff of the crime of Criminal Possession of a Controlled Substance in the Seventh Degree.

27. On February 5, 2010, plaintiff Jesus E. Santos was arraigned before a judge of the Criminal Court of the City of New York, County of New York, and was released in his own recognizance.

28. On July 26, 2010, the criminal proceeding brought by defendant Marcy Velez against plaintiff Jesus E. Santos was dismissed.

COUNT I

29. Plaintiff incorporates by reference paragraphs 1 through 28 of this Complaint as though the same were set forth fully herein.

30. The seizure, arrest, detention and imprisonment of plaintiff Jesus E. Santos were made without any warrant or other legal process directing or authorizing his seizure, arrest, detention or imprisonment.

31. The charges upon which defendants James Shaughnessy, Euris Paulino and Marcy Velez arrested plaintiff Jesus E. Santos were false.

32. The charges were made by defendants James Shaughnessy, Euris Paulino and Marcy Velez against plaintiff Jesus E. Santos with knowledge that they were false.

33. Plaintiff Jesus E. Santos was aware of his seizure, arrest, detention and imprisonment by defendants James Shaughnessy, Euris Paulino and Marcy Velez.

34. Plaintiff Jesus E. Santos did not consent to his seizure, arrest, detention or imprisonment.

35. As a result of the foregoing, plaintiff Jesus E. Santos was deprived of his liberty, was imprisoned, and was subjected to mental and physical distress, embarrassment and humiliation.

36. The seizure, arrest, detention and imprisonment of plaintiff Jesus E. Santos deprived him of his right to be free of unlawful searches and seizures and his right not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States.

37. Defendants James Shaughnessy, Euris Paulino and Marcy Velez were acting under color of state law when they seized, arrested and imprisoned plaintiff Jesus E. Santos.

38. Defendants James Shaughnessy, Euris Paulino and Marcy Velez deprived plaintiff Jesus E. Santos of his rights to be free of unlawful searches and seizures and not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by seizing, arresting, detaining and imprisoning plaintiff Jesus E. Santos on false criminal charges.

COUNT II

39. Plaintiff incorporates by reference paragraphs 1 through 38 of this Complaint as though the same were set forth fully herein.

40. The criminal charges brought by defendant Marcy Velez against plaintiff Jesus E. Santos in the Criminal Court of the City of New York, County of New York, were false.

41. The criminal proceeding instituted by defendant Marcy Velez against plaintiff Jesus E. Santos in the Criminal Court of the City of New York, County of New York, was instituted by defendant Marcy Velez with knowledge that the charges were false.

42. The criminal proceeding instituted by defendant Marcy Velez against plaintiff Jesus E. Santos in the Criminal Court of the City of New York, County of New York, was instituted without probable cause to believe that the plaintiff had committed the offenses charged.

43. Defendant Marcy Velez was acting with malice when she instituted the criminal proceeding against plaintiff Jesus E. Santos.

44. The criminal proceeding instituted by defendant Marcy Velez against plaintiff Jesus E. Santos in the Criminal Court of the City of New York, County of New York, was terminated in plaintiff Jesus E. Santos's favor.

45. Defendant Marcy Velez was acting under color of state law when she falsely informed an Assistant District Attorney in the office of the New York County District Attorney that plaintiff Jesus E. Santos had committed the crime of Criminal Possession of a Controlled Substance in the Seventh Degree.

46. Defendant Marcy Velez was acting under color of state law when she instituted a criminal proceeding against plaintiff Jesus E. Santos in the Criminal Court of the City of New York, County of New York.

47. Defendant Marcy Velez deprived plaintiff Jesus E. Santos of his right not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by prosecuting plaintiff Jesus E. Santos on a false criminal charge.

COUNT III

48. Plaintiff incorporates by reference paragraphs 1 through 47 of this Complaint as though the same were set forth fully herein.

49. The acts complained of were carried out by defendants James Shaughnessy, Euris Paulino and Marcy Velez in their capacities as police officers and employees of defendant The City of New York, with all the actual and/or apparent authority attendant thereto.

50. The acts complained of were carried out by defendants James Shaughnessy, Euris Paulino and Marcy Velez in their capacities as police officers pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

51. Defendant The City of New York implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of stopping, seizing, searching and arresting persons on insufficient evidence in violation of the Fourth and Fifth Amendment and the Equal Protection Clause of the Fourteenth Amendment of the Constitution of the United States.

52. The aforesaid customs, policies, usages, practices, procedures, and rules of defendant The City of New York include, but are not limited to, the following:

- (a) Defendant The City of New York failed properly to train police officers in the standards for probable cause for the warrantless seizure and arrest of individuals consistent with the requirements of the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States;
- (b) Defendant The City of New York failed properly to train police officers in the circumstances under which probable cause exists for the warrantless arrest of an individual;
- (c) Defendant The City of New York failed properly to supervise police officers during the performance of their duties, and more particularly during warrantless arrests and searches;
- (d) Defendant The City of New York failed properly to monitor arrests made by its police officers to determine if its police officers were following proper standards for probable cause for the warrantless seizure and arrest of individuals consistent with the requirements of the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States;
- (e) Defendant The City of New York failed to discipline police officers for making warrantless arrests where probable cause for an arrest did not exist.

53. The failure of defendant The City of New York properly to train, supervise, monitor and discipline its police officers constituted deliberate indifference to the rights of persons with whom its police officers come into contact.

54. The seizure, arrest, detention, imprisonment and prosecution of plaintiff Jesus E. Santos resulted from the failure of defendant The City of New York properly to train, supervise, monitor and discipline its police officers in the standards of probable cause and the requirements for warrantless arrests and searches.

55. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice for police officers to make warrantless arrests without probable cause.

56. Defendant The City of New York deprived plaintiff Jesus E. Santos of his rights to be free of unlawful searches and seizures and not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing properly to train its police officers in the standards for making warrantless arrests and searches.

57. The aforesaid conduct of defendant The City of New York violated the plaintiff's rights under 42 U.S.C. §1983 and the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States.

COUNT IV

58. Plaintiff incorporates by reference paragraphs 1 through 57 of this Complaint as though the same were set forth fully herein.

59. Upon information and belief, at all times relevant herein, defendant The City of New York was aware from Notices of Claim, from lawsuits, from claims filed with the New York City Police Department and the Civilian Complaint Review Board, and from the New York City Police Department's own observations, that defendants James Shaughnessy, Euris Paulino and Marcy Velez are unfit, ill tempered police officers who have the propensity to commit the acts alleged herein.

60. Upon information and belief, defendant The City of New York failed adequately to investigate prior complaints against these officers.

61. The failure of defendant The City of New York properly to take remedial action to train, retrain, supervise, monitor and discipline police officers for violations of Constitutional rights constituted deliberate indifference to the rights of persons with whom its police officers come into contact.

62. Nevertheless, defendant The City of New York exercised deliberate indifference by failing to take remedial action by failing to train, retrain, supervise, monitor and discipline the officers and improperly retained and utilized them.

63. Defendant The City of New York knew, or should have known, that as a direct result of this policy, practice and/or custom, the Constitutional rights of plaintiff Jesus E. Santos would be violated.

64. Defendant The City of New York implemented, enforced, encouraged, sanctioned and failed to rectify such policy, practice and/or custom with deliberate indifference to and disregard for the civil rights of individuals, and more particularly, the civil rights of plaintiff Jesus E. Santos.

65. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice of failing adequately to investigate complaints against police officers for violating civil rights and to take appropriate remedial action.

66. Defendant The City of New York deprived plaintiff Jesus E. Santos of his rights to be free of unlawful searches and seizures and not be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing adequately to investigate complaints against police officers and to take appropriate remedial action to prevent further violations of the civil rights of members of the public, which resulted in the seizure, arrest, imprisonment and prosecution of plaintiff Jesus E. Santos.

COUNT V

67. Plaintiff incorporates by reference paragraphs 1 through 66 of this Complaint as though the same were set forth fully herein.

68. Defendants James Shaughnessy, Euris Paulino and the City of New York committed an assault and battery on the person of plaintiff Jesus E. Santos in the course of seizing, arresting, handcuffing and imprisoning the plaintiff.

69. As a result of the foregoing, plaintiff Jesus E. Santos experienced pain, physical and emotional distress, hardship and anxiety.

COUNT VI

70. Plaintiff incorporates by reference paragraphs 1 through 69 of this Complaint as though the same were set forth fully herein.

71. Defendants James Shaughnessy, Euris Paulino, Marcy Velez and The City of New York falsely imprisoned plaintiff Jesus E. Santos by seizing, arresting and imprisoning him on a false criminal charge.

72. As a result of the foregoing, plaintiff Jesus E. Santos was deprived of his liberty, was imprisoned, was greatly humiliated, was subjected to mental and physical distress, and was subjected

to embarrassment and humiliation.

COUNT VII

73. Plaintiff incorporates by reference paragraphs 1 through 72 of this Complaint as though the same were set forth fully herein.

74. The institution of a criminal proceeding against plaintiff Jesus E. Santos based on false criminal charges by defendants Marcy Velez and The City of New York constituted malicious prosecution.

75. As a result of the criminal proceeding instituted by defendants Marcy Velez and The City of New York, plaintiff Jesus E. Santos was exposed to public ridicule, scorn, humiliation and embarrassment.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests that this Court grant the following relief:

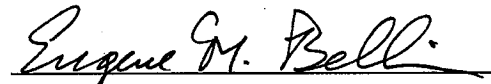
- A. Award the plaintiff compensatory damages to be determined by the jury at the time of trial;
- B. Award the plaintiff punitive damages to be determined by the jury at the time of trial;
- C. Award the plaintiff reasonable attorney's fees and costs, including the fees and costs of experts, incurred in prosecuting this action; and
- D. Grant such further relief as the Court deems necessary and proper.

JURY TRIAL DEMANDED

The plaintiff requests a jury trial on all questions of fact raised by his Complaint.

Dated: New York, New York
April 27, 2010

EUGENE M. BELLIN

A handwritten signature in cursive script, reading "Eugene M. Bellin", written in black ink.

Eugene M. Bellin (EB-0722)

Attorney for Plaintiffs

233 Broadway - Suite 2201

New York, New York 10279

(212) 267-9100